

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EDWARD DELESKI,

Petitioner

VS.

CONNOR MCLEOD,

Respondent

) Case Number: FDI-26-802818

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Edward Deleski and Respondent Connor Mcleod. They share no minor children.
- 2) On 4/2/26, Petitioner filed a Petition for Dissolution indicating the date of marriage is 8/22/15 and date of separation is 3/26/26 for a marriage of 10 years and 7 months.
- 3) On 6/1/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 8/22/14 and date of separation is 3/26/26 for a marriage of 11 years and 7 months.
- 4) On 7/9/26, Respondent filed a Request for Order seeking \$13,404 in guideline temporary monthly spousal support and \$45,000 in Family Code section 2030 attorney's fees and costs. Respondent attaches as Exhibit B a proposed XSpouse calculation and requests the Court calculate temporary support on the average of Petitioner's monthly earnings for the past 5 years, or \$54,600 per month. Respondent asserts that there is a significant disparity in income and access to funds as Petitioner earns income from a real estate business and reports total assets of approximately

1 \$9,080,495, including large cash accounts, retirement assets, brokerage accounts, multiple real
2 estate holdings, and other assets.

3 5) On 7/9/26, Respondent filed an Income and Expense Declaration indicating he is unemployed,
4 has \$20,000 in cash assets, has \$12,317 in easily saleable funds, and pays \$15,048.97 in average
5 monthly expenses.

6 6) On 7/9/26, counsel for Respondent filed a declaration substantiating Respondent's request for
7 \$45,000 in Family Code section 2030 attorney's fees and costs.

8 7) On 7/31/26, Respondent refiled his Income and Expense Declaration.

9 8) On 8/17/26, Respondent filed a Proof of Electronic Service indicating service (of the Request for
10 Order, declaration of counsel, Tentative Ruling Instructions, and a blank Responsive Declaration)
11 was effectuated by email on 7/22/26. The Court notes there is no indication whether
12 Respondent's Income and Expense Declaration was served.

13 9) Petitioner did not file a Responsive Declaration.

14 **B. Findings and Order**

15 1) Respondent's unopposed request for Family Code section 2030 attorney's fees is GRANTED in
16 the amount of \$25,000. The Court finds an award of attorney's fees and costs is appropriate here
17 because there is a demonstrated disparity between the parties in access to funds to retain or
18 maintain counsel and in the ability to pay for legal representation.

19 2) The Court further finds, based on Respondent's assertion of Petitioner's average monthly income
20 and assets, which Respondent presented under penalty of perjury, Petitioner is reasonably likely
21 to have the ability to pay for legal representation for both parties.

22 3) Finally, \$25,000 in attorney's fees and costs are reasonable and necessary.

23 4) Petitioner shall pay this balance in full by 10/3/26.

24 5) Respondent's request for guideline monthly spousal support is **CONTINUED to 11/10/26 at 9**
25 **AM in Dept. 403** as Petitioner must file mandatory form FL-150 (Income and Expense
26 Declaration).

27 6) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive
28 Declaration and shall file and serve an Income and Expense Declaration.

1 7) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply
2 Declaration.

3 8) Should Petitioner fail to file an Income and Expense Declaration as ordered herein, the Court will
4 use Respondent's estimation of Petitioner's monthly income (\$54,600 per month) to calculate
5 guideline monthly spousal support.

6 9) Counsel for Respondent shall prepare the Findings and Order After Hearing.

7 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
8 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
9 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
10 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
11 proposed order after hearing directly to the court. Failure to submit the order after hearing within
12 10 days may allow the other party to prepare a proposed order and submit it to the court in
13 accordance with CA Rules of Court, Rule 5.125(d).